

KMVTECH EDUCATION**CEL1 · Module 3****Domestic framework**

Lesson: Uganda's legal base

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Uganda's environmental constitution starts with Article 39 (clean and healthy environment) and related provisions on natural resources and public trust. The National Environment Act is the framework statute; sectoral laws cover wildlife, forests, water, wetlands, mining, petroleum and climate.

The Act establishes principles, institutions, planning tools (including EIA), standards, licences and enforcement powers. Subsidiary legislation and guidelines fill operational detail.

Public-trust and inter-generational considerations influence the interpretation of resource rights and State duties.

- Hierarchy: Constitution → framework Act → sectoral statutes → regulations and permits.

2. DETAILED RULES AND APPLICATION

Example: a wetland reclamation project must satisfy constitutional, National Environment Act and sectoral wetland/water rules; conflict is resolved in favour of the higher or more specific protective norm where possible.

Always locate the issue in the constitutional right, the framework Act and the relevant sectoral statute before drilling into permits.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Judicial enforcement of Article 39 and the public-trust doctrine has expanded standing and remedies. Implementation gaps (capacity, coordination, resources) remain the practical frontier.

Exam trap: analysing only the sectoral permit while ignoring the constitutional right or the framework Act's principles and EIA duties.

Method: start with Art. 39 → identify framework and sectoral statutes → map institutional responsibilities → check whether EIA, licensing and public-participation duties have been met.

This is the map for every subsequent module on institutions, EIA and resources.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What does Article 39 protect?
2. What is the role of the National Environment Act?
3. Name three sectoral environmental regimes.
4. What is the public-trust idea?
5. Why does hierarchy of norms matter?
6. What is the first statutory stop after the Constitution?

Exam tip: Constitution → framework Act → sectoral law.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.